

Fly GACA — Refund & Cancellation Policy

SECTION 02-legal

TYPE legal

STATUS **draft**

OWNER Founder

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Document: refund-and-cancellation-policy-draft-2026-07-03.md **Version:** Draft 1.2 — 2026-08-19 (prices restated to the 2026-08-19 price card; retired SKUs removed) **Status:** DRAFT — requires review by a qualified Saudi-licensed lawyer before use. **Applies to:** All paid Fly GACA products — consumer subscriptions, the Exam Season Pass, Prep Packs, and B2B Academy licences. **Language:** English (master). Arabic translation required before account launch. **Contact:** support@flygaca.com | legal@flygaca.com

DRAFT — requires review by a qualified Saudi-licensed lawyer before use.

This document is a working draft prepared by an AI assistant for founder review. It is NOT legal advice and has NOT been reviewed by a Saudi-licensed lawyer. It must be reviewed and approved by qualified Saudi legal counsel before it is published or relied upon.

Fly GACA is operated by BDA Company International (شركة بدع الدولية) — CR 7030976893, VAT 311415259500003, Riyadh (entity formation complete; see launch-gate-legal-checklist P2-1). Instruments this draft is intended to align with: Saudi E-Commerce Law (Royal Decree M/126, 1440H / 2019) and its Implementing Regulations; Consumer Protection Law (Royal Decree M/36, 1446H / 2024); ZATCA VAT and e-invoicing requirements. This is the standalone public policy identified as a P1 gap in `legal-gap-audit-2026-06-14.md` §2.1 (required for payment-processor merchant compliance and app-store submission); it restates and expands Terms of Use §5.4 — the two must not conflict. Do not publish until lawyer review is complete and payments launch (gate L2) is reached.

1. Scope and Effective Date

This policy explains when and how you can cancel a Fly GACA purchase and receive a refund. It applies from the date online payments launch and forms part of the [Terms of Use](#) (§5). For B2B Academy customers, the Customer Agreement & EULA and the applicable Order Form prevail over this policy where they differ (see Section 6).

Nothing in this policy limits any right you have under the Consumer Protection Law of the Kingdom of Saudi Arabia or the Saudi E-Commerce Law that cannot be excluded by contract. **[Counsel question E1: the statutory withdrawal / cooling-off period under the E-Commerce Law Implementing Regulations, and whether the digital-content exception applies once access begins.]**

2. What Is Always Free

The GACAR library, guides, and safety lessons are free and require no payment — no refund question arises for them. This policy covers only paid tools, teaching, AI access, and B2B licences.

3. Consumer Subscriptions (Pro Monthly / Pro Annual)

Product	Price (SAR, incl. VAT)	Cancellation	Refund
Pro Monthly	79/month	Any time from account settings; takes effect at the end of the current billing month	Full refund within 30 days of the <i>initial</i> payment if you have not made substantial use of paid features; after that, no refund for the current month
Pro Annual	649/year (7-day free trial)	Any time; access continues to the end of the paid year	Cancel during the 7-day free trial: no charge. Full refund within 30 days of the initial payment without substantial use of paid features; after 30 days, no refund for the current year [Counsel question E2: whether a pro-rata refund is required for annual consumer plans under KSA consumer-protection rules]

- "Substantial use" means meaningful consumption of paid features — for example, Captain Adel questions beyond the free-tier allowance, mock exams, or protected study content. We assess this reasonably and in good faith.
- Subscriptions renew automatically. Cancel **before the renewal date** to avoid the next charge; a renewal charge itself is refundable if you cancel within **7 days** of renewal without having used paid features in the new period.
- Cancelling never removes access you have paid for — access runs to the end of the paid period.

4. One-Time Products

Product	Price (SAR)	Refund position
Exam Season Pass (90-day access)	299	Non-refundable once activated and study material has been accessed, given its time-limited nature. Refundable in full if purchased but never activated, requested within 30 days
Prep Packs — Essential band (Conversion · Medical · AIP) 249 · Standard band (ELP/SAELPT · ATPL · IR) 399 · Complete band (CPL · PPL) 499	as listed	Full refund within 14 days of purchase if pack content has not been accessed and bundled Pro days have not been used; non-refundable after content access [Counsel question E3: confirm against the E-Commerce Law digital-content rules]

Product	Price (SAR)	Refund position
All-Access Bundle (all eight paid packs, permanent)	1,499	Component rules above apply to each pack in the bundle [Counsel / owner question E5: whether accessing one pack forfeits the whole bundle or only that pack — the retired bundle SKUs left this unresolved and it should be settled before publication]

Official GACA and testing fees are never included in any Fly GACA product and are never refundable by us.

5. Non-Refundable Items — Summary

- An activated Exam Season Pass after study material has been accessed
- Prep Pack content after it has been accessed / downloaded
- Bundled Pro days that have been consumed
- The current billing period after the applicable refund window has passed
- Amounts forfeited on account termination for a violation of the Terms of Use or Acceptable Use Policy (Terms §6)

6. B2B Academy Customers (Invoiced Contracts)

Academy seat licences are sold under a signed **Order Form** together with the **Fly GACA Customer Agreement & EULA**, the **Service Level Agreement**, the **B2B Data Processing Agreement**, and — for pilot conversions — the **60-Day Pilot Agreement**. Refunds for Academy customers are governed by those documents, not by Sections 3–5 above. Defaults, unless the Order Form states otherwise:

- Fees are invoiced by ZATCA-compliant e-invoice and payable by bank transfer; invoiced annual seat fees are **non-refundable once seats have been granted**, except as expressly stated in the Order Form or required by KSA law.
- Free cohort pilots and 60-day pilots carry no fees and therefore no refund; converting a pilot to a paid contract is governed by the Order Form.
- Mid-term seat swaps (revoke a graduate, grant a replacement) do not create a refund; seat counts stay within the contract.
- Any agreed refund or credit is documented by a ZATCA-compliant **credit note** referencing the original e-invoice.

7. How to Request a Refund

1. Email support@flygaca.com from the email on your account, with your order number (or e-invoice number for B2B) and the reason for the request.

2. We acknowledge within **2 business days** and decide within **5 business days** of receiving the information we need.
3. Approved refunds are returned to the **original payment method** via our payment processor (**Moyasar** — gateway of record, DEC-010) within **14 business days** of approval. Bank and card processing times are outside our control.
4. B2B refunds/credits are settled by bank transfer against a credit note.

8. VAT

Prices are displayed in Saudi Riyals inclusive of VAT at the applicable rate. Refunds include the VAT charged on the refunded amount, and a corresponding ZATCA-compliant credit note or adjusted VAT receipt is issued.

9. Disputed and Incorrect Charges

If you believe a charge is incorrect, contact support@flygaca.com within **30 days** of the charge date (Terms §5.5). We will investigate and respond within 5 business days. Please contact us before raising a card dispute — most issues are resolved faster directly.

10. Our Right to Refund or Terminate

We may, at our discretion, issue a refund outside this policy (for example, for a verified extended service outage — see the SLA for B2B remedies). If we discontinue a paid product you have paid for, we will refund the unused portion pro rata. Termination of your account for cause under the Terms of Use does not entitle you to a refund.

11. Changes to This Policy

We may update this policy from time to time. Material changes are notified to account holders by email and posted with a clear effective date. The version in force at the time of your purchase applies to that purchase.

12. Contact

Purpose	Contact
Refund requests / support	support@flygaca.com
Legal / notices	legal@flygaca.com
General queries	i@flygaca.com

Fly GACA | flygaca.com | Kingdom of Saudi Arabia

DRAFT 1.2 — 2026-08-19 (owner decisions A1-A9 remain applied: Moyasar per DEC-010; VAT-inclusive prices; 7-day renewal window; 14-day pack window; 14-business-day processing. Prices restated to the 2026-08-19 price card in `../03-finance/monetization.md`; the retired Exam Term, Captain Adel 1:1 Consult, Conversion Pack Premium and Conversion Bundle SKUs removed). Not published. Pending Saudi legal counsel review. Cross-references: `terms-of-use-draft-2026-06-14.md` §5; `legal-gap-audit-2026-06-14.md` §2.1; `launch-gate-legal-checklist-2026-06-14.md` P2-4.

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